TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
OCTOBER 30, 2017
MINUTES

Present: Mason Smith, Chair, Barry Wolff, Joseph Belton, Bobby Carrier, Stephen Wood, Stephen Duke, Glyn Cowden.
Staff: Kent Prause, Julia Copeland, Michael Robertson, Lynnette Lynes

Mr. Smith called the meeting to order at 6:00 pm and reviewed the procedures with the public.

1. Approval of Minutes

Mr. Wolff moved for approval of the minutes. Mr. Carrier seconded the motion. All in favor.

2. Public Comment & General Correspondence

Mr. Smith stated that correspondence was received requesting a deferral for item A-3-17.

Mr. Wolff moved for deferral of Case #A-3-17. Mr. Carrier seconded the motion. All in favor.

Mr. Smith administered the oath to all those speaking.

3. Business

A. V-27-17, 130 Mill Street, 517-15-00-018, Request for relief from the strict standards of §156.325(D) Setbacks to allow continued encroachment of the building within the setback as well as permit the continued encroachment of exterior stairwells located within the setback area.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Randy Cooper, attorney for the property owner, reviewed the request with the Board.

Mr. Cowden asked if the existing stairwell would be reconfigured. Mr. Cooper answered that they are asking for the existing stairwell to be allowed and a new

stairwell in the future. Mr. Cowden asked if the lift is required per ADA requirements. Mr. Cooper answered in the negative.

There being no comments, Mr. Smith closed public comment.

▶ *Mr. Wolff moved for approval of the request based on the staff report and application. Mr. Cowden seconded the motion. All in favor.*

B. V-31-17, WITHDRAWN BY STAFF, 44 Salty Tide, 537-01-00-024, Request for relief from the strict standards of the Belle Hall Planned Development Agreement to allow a ten (10) foot encroachment into rear yard setback for a deck.

This item was withdrawn by staff.

C. A-2-17, 408 Hibben Street, 532-01-00-265, Applicant appeals to the Board of Zoning Appeals to reverse the Zoning Administrator's interpretation of §156.049 Vested Rights. A reversal of the Zoning Administrator's determination would allow all of Earl's Court to be vested through December 31, 2018.

▶ Mr. Prause reviewed the decision of the Zoning Administrator through a letter dated September 22, 2017 with the Board.

Mr. Wolff suggested that it would be beneficial to allow additional time for the Zoning Administrator to review the issue more in depth. The Board agreed and Mr. Smith asked Mr. Prause to proceed.

Mr. Prause reviewed the issue further through a Powerpoint presentation (attachment 2).

Mr. Wood asked if the last sentence of section (D) of vested rights would also apply to any extensions. Mr. Prause answered in the affirmative. Mr. Wood asked if a variance could be requested. Mr. Prause answered in the affirmative and stated that a variance could be requested at any time. Mr. Wood asked if the issue is a use issue. Mr. Prause answered in the negative and stated that the issue is a change in development standards. Mr. Wood asked if the

suspension of vested rights by joint resolution was due to the recession. Mr. Prause answered in the affirmative.

Mr. Wood asked if a written request was received to extend the vested rights period for the revised sketch plan approved on July 24, 2013. Mr. Prause answered in the negative.

Mr. Wolff asked about parking and if this is a commercial business use. Mr. Prause answered that residential uses could be allowed on the second floor, but it is predominantly a commercial use building.

Mr. Wood asked if legal counsel has been consulted. Mr. Wood answered in the affirmative and stated that the Town Administrator, corporation counsel, and the Planning Director have reviewed the information and are in agreement with the administrative decision.

Mr. Cowden asked where the on-street parking would be accomplished. Mr. Prause answered that as initially approved, on-street parking could be accomplished and still meet the 20-foot setback if the on-street parking was approved by SCDOT.

Mr. Hamlin O'Kelley, attorney for the applicant, reviewed their position with the Board. He stated that the request is for 408 Hibben, but the entire project should be vested and not only a portion of the project. He stated that their position is that the entire project, which includes 408 Hibben, is vested through December 31, 2018. He stated that they have correspondence in support of the request and provided a copy to the Board to review (attachment 3).

Mr. Wood asked about the written request. Mr. O'Kelley answered that their position is that since the project is vested until December 2018, a written request is not needed as the project has not yet expired.

Mr. Wolff asked if there is a specific use for the property. Mr. O'Kelley answered that the property would be for a commercial use. Mr. Wolff asked if there is a specific commercial use in mind. Mr. O'Kelley answered in the negative. Mr. Wolff asked if the parking is needed for the use. Mr. O'Kelley answered that once the use is determined, the parking required would be determined. He

stated that they have been told that it is a Town issue by SCDOT and a state issue by the Town.

Mr. Brett Bennett, 131 Hibben St, stated that he is the former OVHDC chair and asked that the request be denied. He stated that the close proximity of the existing homes would not support emergency vehicles and would impede traffic. He suggested that the variance should not be approved as there are no extra-ordinary conditions for the area or property and the property could be utilized if the request was not approved.

Mr. Smith noted that the current request is for the appeal of the Zoning Administrator decision. Mr. Bennett stated that he was also addressing the issue under the next agenda item.

Mr. Sam Herin, property owner of 400 Hibben St, suggested that overturning the Zoning Administrator's decision would not be in the best interest of the neighborhood or the Town. He stated that there is an issue with parking in the area and one of the reasons the changes to the code of ordinances was accomplished. He suggested that there is currently not adequate parking for the development.

Mr. Jim Hare, 415 Rose Wilder Lane, expressed concern with parking. He stated that there were some pre-sale commitments such as overflow parking that are no longer provided. He stated that there is only one parking space for each home, but was assured that there would be on-street parking available. He stated that another issue is that they are assessed a parking fee for the additional parking. He asked that some overflow parking is provided for the residents.

Mr. Kevin Cunnane, 3032 River Vista Way, expressed concern with emergency vehicles being able to access the units. He suggested that the homeowners being able to have additional parking should be taken into consideration.

Mr. Kenny Craft, 204 Spooner Lane, stated that the I'On Group has a national notoriety for having quality developments. He suggested that the fundamental issue is that the UC-OD has been stripped down and what was originally put in place has been changed. He suggested that there should be consistency so that there is confidence on the procedures and requirements when completing a

construction project. He suggested that because this development is directly off Coleman Blvd, there can be more intensive commercial uses that would not fit with the character of the neighborhood farther back from Coleman Blvd. He suggested that when determining the setbacks, the streetscape should be taken into consideration as well.

Mr. Vince Graham, property owner, stated that this project has been in the works for several years. He stated that the project exceeds the amount of parking required and has been reviewed by the Fire Department to ensure that it meets their emergency access requirements. He stated that their position is that the project should be vested as a whole and not separated into its different parts.

Mr. O'Kelley noted that they have a letter from the Fire Department and distributed a copy for the Board to review.

Mr. Robertson reviewed correspondence with the Board (attachment 4).

There being no further comments, Mr. Smith closed public comment.

Mr. Wolff stated that this is not whether the Board is in favor of the project or not.

▶ *Mr. Wolff moved to enter into executive session for legal advice. Mr. Cowden seconded the motion. All in favor.*

The Board convened into executive session at 7:20 pm and reconvened at 7:42 pm. No vote or action was taken while in executive session.

Mr. Belton asked if there were any plans submitted within the vested rights period that included this property. Mr. Prause answered in the negative and stated that plan for 408 Hibben was approved on July 24, 2013.

Mr. Wood asked if the property was acquired after the original parcels were developed. Mr. Prause answered in the affirmative.

- *Mr. Wolff moved that after considering the arguments presented, the decision of the Zoning Administrator should be upheld based on findings of Zoning Administrator's report. Mr. Cowden seconded the motion. All in favor.*

D. V-32-17, 408 Hibben Street, 532-01-00-265, Request for relief from the strict standards of §156.318(N)(5)(1)(b) to allow encroachment into the required five (5) foot setback in accordance with Sketch Plan submitted in application.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. O'Kelley reviewed the request with the Board.

Mr. Wood asked the depth of the lot. Mr. Chad Besenfelder answered that it is approximately 85 feet. Mr. O'Kelley showed the lot on the aerial for the Board.

Mr. Wolff asked if the sketch plan showing the footprint is the conceptual plan. Mr. Besenfelder answered in the affirmative. Mr. Mr. Wolff asked what the use would be. Mr. Besenfelder answered that it would be small commercial businesses.

Mr. Belton asked if the reason for moving the building forward is to have more parking in the rear. Mr. O'Kelley answered in the affirmative.

Mr. Smith asked how many parking spaces would be needed. Mr. Besenfelder answered that the off-street parking is needed for employee parking, so there are twelve proposed. He stated that the on-street parking would be used for patrons.

Mr. Wood asked if the buildings on either side of the proposed building are currently constructed. Mr. Besenfelder answered in the negative and stated that those buildings have not been constructed. Mr. Wood asked if a variance would be needed for those buildings. Mr. Besenfelder answered in the negative and stated that under the vested plan, they have a zero setback. He stated that the properties are vested until 2018.

Mr. Belton stated that he does not see the justification for needing the variance and asked if there is on-street parking. Mr. Besenfelder answered in the

affirmative. He stated that the request is to be consistent with the overall development plan.

Mr. Wolff asked the square footage of retail space for this building. He suggested that there might not be sufficient information based on the usage to determine the amount of parking. Mr. Besenfelder answered that the retail square footage would determine the amount of parking required. He stated that if the parking spaces cannot be accommodated, then the amount of square footage would have to be reduced. Mr. Wolff suggested that there is not sufficient information in order to determine if the variance is needed.

Mr. Smith stated that the amount of parking would be determined by the amount of building square footage. Mr. Robertson stated that if the on-street parking is approved by SCDOT, then it could be used to count toward the amount of parking spaces required. He stated that if the parking is required to be met on the property, then the amount of square footage would have to be reduced. Mr. Smith asked if the amount of parking would dictate the amount of retail space that could be accommodated on the site. Mr. Robertson answered in the affirmative and stated that this would also be determined by the requirements of the site.

Mr. Wood asked if this is a conceptual plan that could be altered. Mr. O'Kelley answered that in theory, this could be done, but they would lose the vested rights if changes were made to the previously approved plan.

Mr. Smith administered the oath to Ms. Jody Middlis. Ms. Middlis expressed concern with the parking and that the on-street parking is being used for several different businesses. She stated that this currently causes parking issues.

Mr. Wood asked if the setback is currently an issue. Ms. Middlis answered in the negative and stated that she would like to see more open space and the parking issue resolved. She stated that whether the setback was five feet or twenty feet would not be an issue for her as long as there was sufficient parking.

Mr. Herin stated that he does not have an issue with the setback, but suggested that the building does not necessarily need to be built to the same plane. He suggested that more study of the plan should be accomplished to ensure there is sufficient parking and how it would affect the surrounding neighborhood.

Mr. Craft suggested that not allowing the request could restrict the amount of parking that is needed for the area.

There being no additional comments, Mr. Smith closed the public comment.

Mr. Wood asked if the requirement could be considered a hardship. Mr. Smith answered in the affirmative. Mr. Wood suggested that the aesthetic would not be justification for a hardship.

Mr. Wolff moved for denial of the request based on the findings that the applicant has not shown that use of the property would unreasonably not be restricted. Mr. Wood seconded the motion.

Mr. Belton suggested that the linear development would be hindered and could be considered a hardship in attaining the vision of the development as a whole.

Mr. Wood stated that all of the criteria must be met in order to grant a variance and since the evidence does not show that all criteria has been met, the variance should not be granted.

Mr. Belton stated that reviewing this property as a stand alone project could be considered detrimental to the cohesiveness of the overall project and suggested that this could be considered a hardship.

Mr. Smith agreed and suggested that this could provide flexibility for placement of the building.

Mr. Wood asked if the Planning Commission can change the setbacks. Mr. Robertson answered in the negative.

Mr. Smith called for a vote on the motion. Motion passed on a 4 to 3 vote with Mr. Wolff, Mr. Cowden, Mr. Duke and Mr. Wood in favor; Mr. Carrier, Mr. Belton, and Mr. Smith opposed.

E. A-3-17, 405 Coleman Blvd., 517-06-00-079, Applicant appeals to the Board of Zoning Appeals to reverse the decision of the Zoning Administrator and find that the proposed use of the property is a "Retail Use" and not a

"Restaurant, Fast Food" Use in accordance with the §156.007 Definitions and is not subject to additional parking requirements as the result of the change of use.

This item was deferred.

4. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 8:26 pm.

Submitted by,
L. Lynes
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